

UNCITRAL Transdanubian Days 2026

The role of UNCITRAL in the modernization and harmonization of international trade law

CONCEPT NOTE

Proposed title: Climate Litigation, ISDS Reform, and State Support Mechanisms: Data-Driven and Policy-Oriented Insights

Background

Climate change is increasingly shaping the landscape of international dispute settlement, including investor-State dispute settlement (ISDS). States adopting climate policies are facing a growing number of legal challenges, raising complex questions regarding the balance between investment protection, regulatory autonomy, and human rights obligations. In this context, the ongoing work of UNCITRAL - particularly through Working Group III on ISDS reform - is of central importance. At the same time, recent academic and empirical developments, including the emergence of datasets on climate litigation, provide new insights into evolving legal trends and risks, including those at the intersection of investment law and human rights.

Against this background, the HRJust Climate Claims Visual Tool (<https://www.hrijust-climate-claims.eu/>) offers an innovative contribution. The tool is an open-access case law database and analytical platform that enables users to explore climate litigation through multiple dimensions, including human rights arguments, justification typologies, and civil society engagement. The database currently compiles hundreds of cases across national, regional, and international jurisdictions, including investment arbitration and WTO disputes, allowing for comparative and interdisciplinary analysis. These empirical insights also point to broader structural challenges. In particular, recent developments highlight the increasing relevance of third-party funding in investment arbitration, which may further exacerbate existing asymmetries between investors and States, especially in disputes involving climate measures.

In parallel, significant progress has been made within UNCITRAL Working Group III on ISDS reform, including ongoing efforts toward the establishment of a UNCITRAL Advisory Centre on International Investment Dispute Resolution. As this initiative moves from conceptualisation toward operationalisation, attention is turning to how such a mechanism can be designed to effectively support States, including in complex climate-related disputes.

This expert meeting aims to bring together these perspectives by combining data-driven insights from the HRJust Climate Claims Visual Tool with policy-oriented research on ISDS reform, third-party funding, and institutional support mechanisms, thereby contributing to ongoing international discussions.

Format

Online expert lecture and discussion (open to the public)

Duration: 90 minutes

Programme (Indicative)

Opening Remarks - UNCITRAL / Host Institutions (5 minutes)

Nikola Kováčiková, UNCITRAL (15 minutes)

Mr. Romain Marguet (World Trade Institute, University of Bern, CH), HRJust Climate Claims Visual Tool presentation (15 minutes)

Dr. Federica Cristani (Institute of International Relations Prague, CZ), Safeguarding Climate Policy in Third-Party Funded Investment Arbitration: The Potential Role of the Forthcoming UNCITRAL's Advisory Centre (15 minutes)

Discussion and Q&A (20 minutes)

Closing Remarks (5 minutes)